



POLICE DEPARTMENT

October 31, 2023

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th Floor
New York, NY 10007

Re: CCRB Case No. 202004684 regarding Deputy Chief Gerard Dowling, Tax No. 915640
(DADS No. 2022-25595)

Dear Mr. Darche:

The Police Commissioner has reviewed the request for Charges and Specifications in connection with CCRB Case No. 202004684, pertaining to Deputy Chief Gerard Dowling. Having analyzed the facts and circumstances of this matter, the Police Commissioner has determined that to pursue Charges and Specifications against Deputy Chief Dowling would be detrimental to the Police Department's disciplinary process.

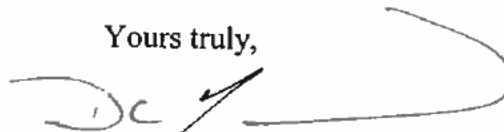
The CCRB substantiated two force allegations against Deputy Chief Dowling. In considering the allegations substantiated by the CCRB, the Police Commissioner carefully reviewed the evidence presented by the CCRB, including video evidence, as well as the situation present at the time of the allegations, to provide context.

Deputy Chief Dowling had responded with numerous officers under his command to the location of a protest which had continued past the citywide curfew which was being legally enforced by the Department. In both instances addressed by CCRB's allegations, the force utilized was reasonable and necessary to overcome resistance in order to legally place persons under arrest. The situation at the time involved uncooperative individuals who demonstrated that they were not going to peacefully disperse or willingly be placed under arrest. Therefore, the Police Commissioner determined that the two incidents addressed by CCRB's allegations were not unreasonable uses of force and therefore do not warrant disciplinary action.

In reaching this determination, the Police Commissioner noted that Deputy Chief Dowling has no other substantiated CCRB allegations in his career, and has not received any formal discipline from the Department prior to this incident, during his 28 years with the Department. Therefore, as

provided for within the 2012 Memorandum of Understanding between the CCRB and the Police Department, the Police Commissioner intends to retain jurisdiction over this matter and take no disciplinary action against Deputy Chief Dowling.

Yours truly,

A handwritten signature in black ink, appearing to read 'AS Marino', with a large, sweeping flourish extending to the right.

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office



ERIC L. ADAMS
MAYOR

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ARVA RICE
INTERIM CHAIR

November 9, 2023

The Honorable Edward A. Caban
Police Commissioner
New York City Police Department
One Police Plaza
New York, NY 10038

Re: CCRB v. Deputy Chief Gerard Dowling
Disciplinary Case No.: 2022-25595

Commissioner Caban:

I am writing in response to the letter from Deputy Chief Anthony S. Marino, dated October 31, 2023, informing the Civilian Complaint Review Board (hereinafter referred to as “CCRB”) that in the interest of justice, you intend to retain jurisdiction over this matter and impose no disciplinary action against Deputy Chief Dowling for the alleged misconduct. Pursuant to Paragraph 2 of the April 2, 2012, Memorandum of Understanding between CCRB and the New York City Police Department (hereinafter referred to as the “MOU”), I am responding to Deputy Chief Marino’s notification.

Deputy Chief Marino stated that after reviewing CCRB’s request for Charges and Specifications and having analyzed the facts and circumstances in this matter, you have “determined that to pursue Charges and Specifications against Deputy Chief Dowling would be detrimental to the Police Department’s disciplinary process.” CCRB disagrees with this determination.

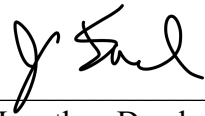
It is undisputed that Deputy Chief Dowling and numerous other officers responded to the incident location for a protest that had continued past the citywide curfew that was in place at the time. The officers began to place some of the protestors under arrest for violating said curfew. While the officers were trying to place § 87(2)(b) under arrest, § 87(2)(b) attempted to intervene in this arrest and Deputy Chief Dowling tried to stop her. In trying to stop her, Deputy Chief Dowling grabbed and pulled § 87(2)(b) by the hair. This misconduct is captured on cell phone footage and while Deputy Chief Dowling admitted to grabbing and pulling her hair, he stated that this was done so unintentionally. While some amount of physical force could have possibly been found reasonable under these chaotic circumstances, pulling and grabbing § 87(2)(b) hair was dangerous and could have caused serious injury and therefore was not a reasonable use of force by Deputy Chief Dowling.

As the officers were trying to place § 87(2)(b) under arrest, Captain Ramos and PO Ustemilov take § 87(2)(b) to the ground. She landed face first and, as the officers are in the process of placing the flex cuffs on her wrist, Deputy Chief Dowling pushed her face into the

ground. § 87(2)(b) suffered a laceration and bleeding from this. This was clearly an unreasonable amount of force under these circumstances—§ 87(2)(b) was in custody, on the ground surrounded by officers, and posed no physical threat to the officers nor was she a threat to escape custody. Based on the evidence and the totality of the circumstances, Deputy Chief Dowling was not justified in using force against § 87(2)(b) and should be held accountable for this misconduct.

While it is recognized that the Police Commissioner is the final arbiter regarding disciplinary actions against members of service, based upon the foregoing, it is respectfully requested that you permit CCRB to pursue Charges and Specifications against Deputy Chief Dowling in this matter.

Respectfully submitted,



Jonathan Darche
Executive Director
NYC Civilian Complaint Review Board



POLICE DEPARTMENT

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

November 16, 2023

Re: CCRB Case No. 202004684 regarding Deputy Chief Gerard Dowling, Tax No. 915640
(DADS No. 2022-25595)

Dear Mr. Darche:

The Police Commissioner has reviewed your letter, dated November 9, 2023 concerning the Civilian Complaint Review Board ("CCRB") case involving Deputy Chief Gerard Dowling, and nevertheless maintains that it would be detrimental to the Police Department's disciplinary process to allow the Civilian Complaint Review Board to continue its prosecution of Deputy Chief Dowling, for the reasons expressed in my October 31, 2023 letter.

Therefore, the Police Commissioner affirms his decision to exercise Provision Two of the Memorandum of Understanding and now directs that Deputy Chief Gerard Dowling receive no disciplinary action in connection with this matter.

Sincerely,

Anthony S. Marino
Deputy Chief
Commanding Officer
Police Commissioner's Office